without just compensation. See also *Armstrong* v. *United States,* 364 U. S. 40 (1960) (Government's complete destruction of a materialman's lien in certain property held a "taking"); *Hudson Water Co.* v. *McCarter,* 209 U. S. 349, 355 (1908) (if height restriction makes property wholly useless "the rights of property . . . prevail over the other public interest" and compensation is required). See generally Michelman, Property, Utility, and Fairness: Comments on the Ethical Foundations of "Just Compensation" Law, 80 Harv. L. Rev. 1165, 1229–1234 (1967).

Finally, government actions that may be characterized as acquisitions of resources to permit or facilitate uniquely public functions have often been held to constitute "takings." *United States* v. *Causby,* 328 U. S. 256 (1946), is illustrative. In holding that direct overflights above the claimant's land, that destroyed the present use of the land as a chicken farm, constituted a "taking," *Causby* emphasized that Government had not "merely destroyed property [but was] using a part of it for the flight of its planes." *Id.,* at 262–263, n. 7. See also *Griggs* v. *Allegheny County,* 369 U. S. 84 (1962) (overflights held a taking); *Portsmouth Co.* v. *United States,* 260 U. S. 327 (1922) (United States military installations' repeated firing of guns over claimant's land is a taking); *United States* v. *Cress,* 243 U. S. 316 (1917) (repeated floodings of land caused by water project is a taking); but see *YMCA* v. *United States,* 395 U. S. 85 (1969) (damage caused to building when federal officers who were seeking to protect building were attacked by rioters held not a taking). See generally Michelman, *supra,* at 1226–1229; Sax, Takings and the Police Power, 74 Yale L. J. 36 (1964).

B

In contending that the New York City law has "taken" their property in violation of the Fifth and Fourteenth Amendments, appellants make a series of arguments, which, while tailored to the facts of this case, essentially urge that